

24STCV23097 24STCV23097

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-07-28

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Case Number: 24STCV23097 Hearing Date: July 28, 2026 Dept: 731

[TENTATIVE] ORDER RE: PLAINTIFF/CROSS-DEFENDANT

JESUS RODRIGUEZ'S MOTION TO STRIKE FIRST AMENDED CROSS-COMPLAINT PERSUANT TO
CCP §425.16

Moving Party: Plaintiff/Cross-Defendant, Jesus Rodriguez

Joinder Parties: Cross-Defendants Rene González and Julia Molina

Opposing Party: Defendants and Cross/Complainants Maria Guadalupe Diaz, an
individual, and Maria Guadalupe Diaz, Trustee of the Diaz Family Revocable
Living Trust Dated September 7th, 2024

Notice: OK

Background Facts

This action arises from a dispute
in real property.

a.

First Amended Complaint

Plaintiff/Cross-Defendant Jesus

Rodriguez ("Rodriguez") sues Defendant/Cross-Complainant Maria Guadalupe Diaz
("Diaz"), both as an individual and as Trustee of The Diaz Family Revocable
Living Trust, Dated September 7th, 2024, pursuant to a March 12, 2025, First
Amended Complaint ("FACC") alleging claims of (1) quiet title (verified), (2)
cancellation of instrument, (3) accounting, (4) unfair business practices, (5)

injunctive relief, and (6) declaratory relief.

The FACC's claims chiefly arise from the following allegations, among others. Rodriguez purchased Diaz's interest in 1451 E. Vernon Avenue, Los Angeles, CA 90011 (the "subject property"), a multi-unit residential property, in February 2007 pursuant to a sale agreement giving Diaz certain rights, with the parties' agreement including the right to tenancy for several months and right to collect rents and pay mortgage on the subject property. Later, Diaz let the property fall into bankruptcy by collecting rent but failing to pay the mortgage, which Rodriguez had to remedy. Later still, after Rodriguez had acquired a full interest in the subject property, Diaz recorded a forged deed conveying the subject property to Diaz, as an individual, then transferring the property to herself as Trustee of the Diaz Family Revocable Living Trust, thus damaging Rodriguez.

b.

First Amended Cross-Complaint

In turn, Diaz, as an individual and as Trustee, sues Rodriguez, as well as Rene Gonzalez ("Gonzalez"), Julia Molina ("Julia"), and Roes 1 through 10 pursuant to an April 24, 2026, First Amended Cross-Complaint alleging claims of (1) quiet title, (2) slander of title, (3) fraud, (4) removal of lien, (5) breach of contract, (6) tortious interference with contractual relationship, (7) violation of covenant of good faith and fair dealing, (8) intentional infliction of emotional distress, and (9) negligent infliction of distress.

The claims chiefly arise from the following allegations, among others. Diaz first acquired full interest in the subject property in 2003, specifically through deed from Diaz and her then-husband, Roberto Diaz, to Diaz as her own separate property. Sometime in late 2006, Angie Villareal ("Villareal"), a real estate agent, introduced Diaz to Israel Luna ("Luna"), who offered to lend Diaz \$200,000 as secured by the subject property. Diaz went forward with the transaction. However, Diaz, a person with a third-grade education who does not read English, was presented with a deed conveying title of the property to Luna and to Rodriguez, a person Diaz had never met, as tenants in common, which, without knowledge or any reason to believe that she was conveying the subject property, and for no consideration, she executed. The deed was then recorded. Luna moreover executed

a Deed of Trust with Assignment of Rents, designating himself as trustor and Diaz as lender. In turn, Rodriguez executed a deed of trust to secure nearly \$200,000.00 in his benefit, which Rodriguez continues to assert as a lien on the subject property. Later, Diaz took an extended trip to Mexico and assigned Villareal and Luna to collect rents, hired Rodriguez as counsel in evicting a certain tenant at the subject property, and in October 2012 rented a unit to Gonzalez, with Molina living in the unit as an unnamed tenant. Then, in October 2024, Diaz attempted to evict Gonzalez and Molina, serving a three-day notice to quit and, after Gonzalez and Molina did not comply, instituted unlawful detainer proceedings. In that litigation, Gonzalez and Molina alleged that Diaz was not the property's real owner, producing a backdated 2012 rental agreement listing Rodriguez as owner, with rents being paid to Rodriguez. Rodriguez then visited Diaz stating he did not want problems and turning over a deed conveying Rodriguez's interest in the property to Diaz, which was subsequently recorded. Rodriguez nevertheless went back to Gonzalez and Molina and executed a new agreement to pay rent monies to Rodriguez as owner.

c.

Motion Before the Court

Before the Court is Rodriguez's opposed anti-SLAPP motion to strike various portions of the FACC as protected activity, on which there is no probability of prevailing on the merits as actionable conduct. Gonzalez and Molina joined Rodriguez's anti-SLAPP motion by way of a June 30, 2026, filing.

Anti-SLAPP Motion

a.

Legal Standard

Anti-SLAPP analysis under Code of

Civil Procedure section 425.16 proceeds in two familiar steps. In the first step, the defendant or moving party must make "a threshold showing that the challenged cause of action is one 'arising from' protected activity." (Barry v. State Bar of California (2017) 2 Cal.5th 318, 321, quotations omitted (Barry).) In this context, the term "protected activity" refers to speech or petitioning activities. (Barry, 2 Cal.5th at p. 321.) A claim arises from protected activity when that activity underlies or forms the basis for the claim; otherwise stated, "the defendant's act underlying the plaintiff's cause of

action [must] itself [be] ... an act in furtherance of the right of petition or free speech.” (Park v. Board of Trustees of California State University (2017) 2 Cal.5th 1057, 1063, quotations omitted (Park).) “[T]he focus is on determining what ‘the defendant’s activity [is] that gives rise to his or her asserted liability—and whether that activity constitutes protected speech or petitioning.’” (Ibid.) In teasing out whether protected conduct exists, courts should consider the elements of the challenged claim and what actions by the defendant supply those elements and consequently form the basis for liability. (Ibid.)

If the court finds the defendant or moving party succeeds at the first step, then the burden shifts to the plaintiff to “demonstrate[] a probability of prevailing on the claim.” (Ibid. [quotations omitted].) At the second step, courts “evaluate the defendants’ evidence only to determine if it defeats that submitted by the plaintiff as a matter of law.” [Citation.] “[I]n order to establish the requisite probability of prevailing [citation], the plaintiff need only have “‘stated and substantiated a legally sufficient claim.’” [Citation.] “Put another way, the plaintiff ‘must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited.’” [Citation.] ... That burden [is] not particularly high.” (Area 51 Productions, Inc. v. City of Alameda (2018) 20 Cal.App.5th 581, 602 (Area 51 Productions, Inc.).) “Claims with the requisite minimal merit may proceed.” (Navellier v. Sletten (2002) 29 Cal.4th 82, 94 (Navallier).) If the cause of action satisfies both prongs of the anti-SLAPP statute, then it is subject to being struck. (Barry, supra, 2 Cal.5th at p. 321.)

As stated by our State’s highest Court: “This is a ‘summary-judgment-like procedure at an early stage of the litigation.’” (Varian, supra, 35 Cal.4th at p. 192.)

b. Discussion

i.

First Prong – Protected Activity

Rodriguez’s motion challenges three sets of acts as protected activity that should be stricken from the FACC pursuant to Code of Civil Procedure section 425.16:

(1)

Rodriguez's recordation of a Notice of Lis

Pendens on the Vernon Property in connection with the pending litigation (FACC, ¶ 23);

(2)

Rodriguez's assertion of a lien in the amount of

\$198,536.00 against the Vernon Property, recorded in the Official Records of Los Angeles County (Recording No. 20130398612) (FACC, ¶ 23); and

(3)

Rodriguez's oral and written statements

asserting an ownership interest in the Vernon Property, including allegedly communicating to tenant Gonzalez that Diaz was not the owner of the property, made after the filing of the underlying complaint and initiation of this litigation (FACC ¶¶ 21-22, 24, 31).

Although the filing of a lis pendens, litigation communications, and statements

made

in connection with judicial proceedings generally constitute protected petitioning

or

speech within the meaning of section 425.16, subdivision (e), that does not end the

inquiry.

The Court must determine whether the challenged conduct itself supplies the

elements

of the challenged claims or instead merely constitutes evidence supporting

liability based on nonprotected conduct. (Park

v. Board of Trustees of California State

University

(2017) 2 Cal.5th 1057, 1063; Wilson v. Cable News Network, Inc. (2019) 7

Cal.5th
871, 884.)

Moreover, because
Rodriguez seeks to strike discrete allegations within causes

of
action rather than the entire pleading, the Court must evaluate each challenged

allegation
separately as required by Baral v. Schnitt (2016) 1 Cal.5th 376 and Bonni
v.

St.
Joseph Health System
(2021) 11 Cal.5th 995. Bonni explicitly rejected judicial

reliance
upon a generalized "gravamen" approach when distinct acts are
targeted.

However,
Bonni did not eliminate or alter the threshold requirement articulated
in Park:

the
challenged act itself must supply the basis for liability. (Bonni, supra,
11 Cal.5th at

pp.
1009-1011.) If the targeted allegations merely provide evidentiary support for
liability

arising
from other, unprotected conduct, section 425.16 does not apply.

Here, the Court concludes Rodriguez
has not met his threshold burden because, viewed individually, none of the
challenged allegations independently supplies the elements of liability for the

asserted cross-claims.

First, although the recording of a lis pendens constitutes protected petitioning activity, the FACC does not seek to impose liability because Rodriguez recorded a lis pendens. Rather, the lis pendens is alleged merely as one of several downstream means by which Rodriguez continued to assert ownership rights that were allegedly acquired through an underlying fraud. Because the cross-claims do not seek damages or quiet title predicated on the act of filing the document itself, the lis pendens serves only as evidence of Rodriguez's ongoing assertion of ownership; it is not the actionable wrong upon which liability is based.

Second, Rodriguez's recorded lien likewise does not independently form the basis for liability. The FACC does not allege that the mere mechanical or communicative act of recording the lien constitutes the actionable tort. Instead, the lien is pleaded as a consequence and ongoing manifestation of Rodriguez's purportedly fraudulent acquisition of title, illustrating the continuous cloud upon Diaz's property rights. Accordingly, the recording of the lien functions as evidentiary support for a broader, unprotected fraudulent scheme rather than actionable conduct itself.

Third, Rodriguez's oral and written statements to third parties—including communications to tenant Gonzalez—are similarly pleaded only as evidence of Rodriguez's continued assertion of ownership. The challenged communications do not independently establish the required elements of quiet title, fraud, breach of contract, or removal of lien. Rather, they serve an evidentiary function, illustrating Rodriguez's ongoing efforts to enforce and preserve ownership rights that Diaz contends were wrongfully obtained.

This case is highly analogous to *Department of Fair Employment & Housing v. 1105 Alta Loma Road Apartments, LLC* (2007) 154 Cal.App.4th 1273. There, although a landlord's unlawful detainer actions and related notices constituted protected petitioning activity, the Court of Appeal held that the tenant's discrimination claims arose from the landlord's underlying failure to accommodate a disability, while the litigation activities merely served as evidence supporting those claims. (*Id.* at pp. 1284-1285.) Likewise, the Court finds guidance in *Copenbarger v. Morris Cerullo World Evangelism* (2013) 215 Cal.App.4th 1237, which concluded that

allegations concerning a protected three-day notice actually targeted the defendants' alleged misuse of that notice in furtherance of an underlying, unprotected scheme. (Id. at pp. 1248-1249.) The same reasoning applies here: the targeted allegations concern Rodriguez's use of filings and statements in furtherance of the underlying fraudulent acquisition and retention of title, not independent wrongdoings arising from protected speech or petitioning.

The moving papers focus heavily upon whether certain claims, such as slander of title, could factually survive if the challenged allegations were excised. That, however, is not the dispositive first-prong inquiry under *Park*. The relevant question is whether the protected acts themselves constitute the conduct giving rise to liability. (*Park*, supra, 2 Cal.5th at p. 1063.) Because the core wrong alleged is the fraudulent deprivation of title, the subsequent publications merely evidence the falsity and cloud created by that underlying fraud.

Finally, the Court notes that the motion fails to identify with precision the exact sentences or phrases within the challenged paragraphs that supposedly constitute protected activity. Instead, Rodriguez moves to strike entire paragraphs wholesale, many of which contain blended allegations of both protected and unprotected conduct. While Baral authorizes striking discrete allegations, the moving party retains the burden to precisely identify the specific allegations subject to section 425.16. Rodriguez's generalized references to entire paragraphs further undermine his threshold showing.

Because the challenged allegations are evidentiary and incidental to the broader unprotected fraudulent scheme underlying Cross-Complainant's claims, Bonni does not alter the analysis. Rodriguez has failed to demonstrate that the challenged claims arise from protected activity within the meaning of Code of Civil Procedure section 425.16, and he has failed to satisfy the first prong of the anti-SLAPP framework. Cross-defendants Gonzalez and Molina, having joined in the motion, obtain no greater relief.

Accordingly, Rodriguez fails to meet his burden on anti-SLAPP, as to Gonzalez and Molina, who joined in Rodriguez's motion.

ii.

Second Prong – Probability of Prevailing
on the Merits

Having failed to meet his burden on
the first prong, the Court does not proceed to further discussion of the second
prong.

c. Conclusion

Plaintiff/Cross-Defendant Jesus
Rodriguez's anti-SLAPP motion is DENIED.

Plaintiff/Cross-Defendant Jesus
Rodriguez is ordered to give notice.

Parties who intend to submit
on this tentative must send an email to the court at indicating intention to submit on the tentative
as directed by the instructions provided on the court website at www.lacourt.org. If
the department does not receive an email indicating the parties are submitting
on the tentative and there are no appearances at the hearing, the motion may be
placed off calendar. If a party
submits on the tentative, the party's email must include the case number and
must identify the party submitting on the tentative. If the parties do not submit on the
tentative, they should arrange to appear remotely.